Cover note for John (remove this page before circulating)

- Purpose: a shareholder action outside the board that (1) adopts a bylaw putting related-party payments, netting and reclasses under disinterested-director control, (2) requires an independent reconciliation of the disputed balances and the share register, and (3) withholds ratification of the 4/30/2026 entries. It does NOT vote on the sale to Exos (Motion 1 stays with the board; John abstains).
- Vote math (08-2024 register, 872,525 shares outstanding; majority = 436,263): Exos 157,553 (18.06%) + Microcosm by proxy 280,000 (32.09%) = 437,553 (50.15%), a majority by only 1,290 shares. Adding Conger (73,000) and Rufer (91,000) brings it to 601,553 (68.94%). Recommend NOT relying on the proxy alone: get Conger and Rufer to sign.
- Why the 18% matters here: on SSLC's 6/3/2026 ledger (Exos 132,972; 847,944 total) Exos + proxy = 48.7%, under a majority. The 08-2024 register is the basis for 18.06%; Resolution 3 makes the Corporation reconcile the ledger to it.
- Checked against SSLC Bylaws (adopted June 2000; data-room/SSLC/governance/SSLC_1a_Bylaws.pdf): Art. II §10 expressly permits shareholder action by written consent of a majority of outstanding shares and recognizes proxyholders; Art. IX §1 lets holders of a majority of outstanding shares adopt or amend bylaws. The new Article is numbered X (existing Articles I-IX).
- Open items before use: (a) SSLC Articles of Incorporation are not in the data room. Order a certified copy from the CA Secretary of State to confirm they do not restrict written consent (§603(a)) or fix the board size; (b) Bylaws Art. II §12 requires a proxy to be 'filed with the secretary': deliver the Microcosm proxy to the Secretary with (or before) the consents; (c) confirm the current Secretary (the 2000 certificate is signed by Alice V. Wertz) and deliver consents to the Secretary AND every director by trackable means; (d) record date for this consent = the day the first consent is signed (Bylaws Art. II §11(b)). Sign Exos's consent last, on the day all are delivered.
- Exos $60K resolved (Exos QuickBooks, 10/12/2026): the $790K 'Scorpius Stock' = $450K (Nov 2021) + $60K (12/21/2023) + $250K (Mar-Apr 2024) + $30K loan converted (7/24/2024). The 10/10/2024 $60K is a SEPARATE loan (SSLC repaid $28.8K; $31.2K still due). The 18.06% and the loan are both valid.
- Sequence: collect signatures, deliver all signed consents to the Secretary at the same time (consents can be revoked until the majority is filed, §603(c)), then send the Notice (Exhibit B) promptly to non-consenting holders (§603(b)(2)). Expect Microcosm to revoke the proxy once it is used; actions taken before revocation remain valid (Proxy §4).
- Not legal advice. Sources: Cal. Corp. Code §603 (written consent), §705 (proxies), §211 (shareholder bylaw amendment), §310 (interested-director transactions), §1602 (director inspection); california.public.law.

DRAFT — NOT EXECUTED

SCORPIUS SPACE LAUNCH COMPANY

(a California corporation)

ACTION BY WRITTEN CONSENT OF SHAREHOLDERS WITHOUT A MEETING

Pursuant to Section 603 of the California Corporations Code

The undersigned shareholders of Scorpius Space Launch Company, a California corporation (the "Corporation"), holding shares having not less than the minimum number of votes that would be necessary to take the following actions at a meeting at which all shares entitled to vote were present and voted, hereby consent in writing to the adoption of the following resolutions, effective on the date this consent has been signed by holders of a majority of the outstanding shares and delivered to the Secretary of the Corporation (the "Effective Date"):

Recitals

A. Exos Aerospace Systems & Technologies, Inc. ("Exos") invested $790,000 in the Corporation and holds 157,553 shares (18.06%) per the Corporation's register titled "Post Exos Shares acquisition 08-2024".

B. By a Proxy dated October 9, 2024, Microcosm, Inc. ("Microcosm") granted John M. Quinn its voting rights on financial matters of the Corporation, including accounting, financing and loans, until the completion of the acquisition of the Corporation by Exos or written revocation. No revocation has been delivered.

C. On or about April 30, 2026, entries were recorded in the Corporation's books that (i) reclassified $426,687 of accounts payable to "Due to Microcosm", (ii) added $97,302 of interest to a note payable to Microcosm Astronautics Books, and (iii) netted approximately $812,699 lent by the Corporation to Microcosm (together, the "April 2026 Entries"). The April 2026 Entries were not presented to or approved by the proxyholder or by disinterested directors.

D. The Corporation's accounts receivable unbilled (account 1110, $942,177 at October 11, 2026) and customer deposits (account 2380, $120,000) are disputed, and the Corporation's share ledger dated June 3, 2026 does not match its issued certificates.

E. Accurate books are a condition to any sale of the Corporation's assets and to any distribution to its shareholders.

Resolution 1: Bylaw Amendment

RESOLVED, that pursuant to Article IX, Section 1 of the Bylaws and Section 211 of the California Corporations Code, the Bylaws of the Corporation are amended to add a new Article X titled "Financial Integrity and Related-Party Transactions" in the form attached as Exhibit A, effective on the Effective Date.

Resolution 2: Independent Reconciliation

RESOLVED, that the officers of the Corporation are directed to carry out the Independent Reconciliation required by Section 10.4 of Exhibit A, and to deliver its report to every director and to any shareholder who requests it.

Resolution 3: Share Register

RESOLVED, that the Secretary of the Corporation is directed to reconcile the share register to the certificates issued, including without limitation Certificate #3 (Robert Conger, 44,000 shares), which is omitted from the named holders on the June 3, 2026 ledger, and Exos's holding of 157,553 shares per the 08-2024 register, and to deliver the corrected register to all shareholders within 15 days of the Effective Date.

Resolution 4: No Ratification; Reservation of Rights

RESOLVED, that the shareholders do not ratify the April 2026 Entries or any payment, set-off, reclassification or interest accrual in favor of a Related Party (as defined in Exhibit A) made after October 9, 2024 without the approval required by Exhibit A, and each such item shall be treated as disputed until resolved by the Independent Reconciliation. All rights of the Corporation and its shareholders are reserved.

Resolution 5: General

RESOLVED, that the officers of the Corporation are authorized and directed to take all actions necessary to carry out these resolutions, and that the Secretary shall file this consent with the minutes of the proceedings of the shareholders and give the notice required by Section 603(b) of the California Corporations Code.

This consent may be executed in counterparts and by electronic signature, each of which is an original and all of which together are one instrument.

Shareholder Signatures

Shareholder	Shares	% of 872,525	Signature / Date
Exos Aerospace Systems & Technologies, Inc. By: John M. Quinn, Cofounder & CEO	157,553	18.06%	_____ Date: _____
Microcosm, Inc. (by proxy) By: John M. Quinn, proxyholder under the Microcosm, Inc. Proxy dated October 9, 2024 (financial matters, including accounting)	280,000	32.09%	_____ Date: _____
Robert (Bob) Conger Certificates #3 (44,000) and #43 (29,000)	73,000	8.37%	_____ Date: _____
Markus Rufer Certificates #31 (2,000) and #45 (89,000)	91,000	10.43%	_____

			Date: _____
Name:			_____ Date: _____
Name:			_____ Date: _____
Name:			_____ Date: _____
Named signers, total	601,553	68.94%	Majority required: 436,263

DRAFT — NOT EXECUTED

EXHIBIT A

ARTICLE X: FINANCIAL INTEGRITY AND RELATED-PARTY TRANSACTIONS

10.1 Definitions. "Related Party" means (a) any director or officer of the Corporation; (b) any holder of 10% or more of the Corporation's outstanding shares; (c) any spouse, child, parent or sibling of a person in (a) or (b); and (d) any entity in which a person in (a) through (c) holds a material financial interest or serves as a director or officer, including without limitation Microcosm, Inc. and Microcosm Astronautics Books. "Related-Party Transaction" means any payment, loan, advance, guarantee, lease, cost allocation, reclassification, interest accrual, set-off, netting, forgiveness or other transfer of value between the Corporation and a Related Party. "Disinterested Director" means a director who is not, and has no material financial interest in, a party to the transaction.

10.2 Approval Required. No Related-Party Transaction shall be entered into, paid, recorded or modified unless (a) the material facts, including written invoices or agreements supporting the amount, are disclosed to all directors, and (b) it is approved by a majority of the Disinterested Directors (who may not be fewer than two) in a manner meeting Section 310(a)(2) of the California Corporations Code, or by the shareholders under Section 310(a)(1) with the shares owned by the interested Related Party not being entitled to vote. Ordinary payroll to an employee who is a Related Party at rates previously so approved does not require further approval.

10.3 Freeze Pending Reconciliation. Until the Independent Reconciliation report has been delivered and its adjustments recorded, the Corporation shall not (a) repay, net, offset, increase or accrue interest on any amount recorded as owed to a Related Party, or (b) make any distribution to shareholders.

10.4 Independent Reconciliation. Within 15 days after this Article takes effect, the Disinterested Directors shall engage an independent certified public accounting firm that has not, within the prior three years, been engaged by any Related Party or worked at the direction of any Related Party (the "Reviewer"). The Reviewer shall, within 45 days after engagement, reconcile and report on: (a) accounts receivable unbilled (account 1110) and customer deposits (account 2380), tank by tank, against customer purchase orders, invoices, billing milestones and deliveries; (b) all balances owed to or by Microcosm, Inc. and Microcosm Astronautics Books, including the entries recorded on or about April 30, 2026, with supporting invoices and agreements; (c) the allocation of facility rent, utilities, software, office and shared services between the Corporation and any Related Party from January 1, 2024; (d) all amounts paid to any Related Party from July 1, 2024; and (e) the share register against issued certificates and paid-in capital by holder. The Corporation shall record the Reviewer's adjustments within 10 days after receiving the report.

10.5 Director Access. Every director shall receive, within three business days after written request, read-only access to the Corporation's accounting system and supporting records, consistent with Article V, Section 10 and Article VII, Section 4 of these Bylaws and Section 1602 of the California Corporations Code. No officer, employee or contractor of the Corporation shall restrict or delay that access.

10.6 Share Register. The Secretary shall maintain the share register reconciled to the certificates issued and shall furnish it to any shareholder on written request within 10 days.

10.7 Amendment. This Article may be amended or repealed only by approval of the outstanding shares (Section 152 of the California Corporations Code), and the Board shall have no power to amend or repeal it.

DRAFT — NOT EXECUTED

EXHIBIT B

NOTICE OF SHAREHOLDER ACTION TAKEN WITHOUT A MEETING

(California Corporations Code §603(b)(2))

To the shareholders of Scorpius Space Launch Company who did not sign the written consent:

On [date], holders of a majority of the Corporation's outstanding shares approved, by written consent and without a meeting: (1) a bylaw amendment requiring disinterested-director approval of related-party transactions, a freeze on related-party repayments and distributions until the books are reconciled, director access to the accounting records, and an accurate share register; (2) an independent reconciliation of the disputed accounts; (3) correction of the share register; and (4) a reservation of rights regarding related-party entries not approved as required. A copy of the consent and the bylaw amendment is enclosed.

These actions protect every shareholder's share of any sale proceeds by making sure the books are accurate before any payout.

Secretary, Scorpius Space Launch Company

DRAFT — INTERNAL — NOT EXECUTED — NOT SENT — prepared for John Quinn, 2026-10-12